

## 26SMCV00432 26SMCV00432

County: los-angeles

Division: Civil Law and Motion

Department: N

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### TENTATIVE RULING

Plaintiff Stephen Shapiro, Trustee of The Stephen Shapiro Revocable 1996 Trust's Demurrer to the Answer to the First Amended Complaint of Plaintiff Stephen Shapiro, Trustee of The Stephen Shapiro Revocable 1996 Trust is OVERRULED.

Plaintiff Stephen Shapiro, Trustee of The Stephen Shapiro Revocable 1996 Trust to give notice.

### REASONING

Plaintiff Stephen Shapiro, Trustee of The Stephen Shapiro Revocable 1996 Trust submits the subject demurer on grounds that all but the second, fourth, sixth, ninth, sixteenth, twenty first, twenty fourth, and twenty ninth, thirty fourth, thirty fifth, and thirty sixth, affirmative defenses lack sufficient facts, with certain items duplicative as well.

Plaintiff challenges the identified defenses on general grounds of uncertainty. On the first, third, twentieth, twenty first, twenty seventh, twenty eighth, and thirty fifth affirmative defenses, Plaintiff contends said defenses represent a "new" matter without sufficient factual support, as opposed to a proper denial. Defendants in opposition maintain sufficiently pled defenses and deny any obligation to present evidentiary support under a heightened pleading standard. All defenses invoke an established and recognized legal doctrine. Defendants may plead alternative defenses even if potentially redundant. Plaintiff in reply contends Defendants fail to address the "new matter" position. Plaintiff also reiterates the lack of sufficient "ultimate facts" position, and duplicative positions.

The court finds no support for the position that the "denials" in the identified defenses constitute a "new" matter as opposed to a traverse. The challenged defenses are directly responsive to the allegations in the complaint. Further, the general challenge to the affirmative defenses constitutes glib conclusion without sufficient substantive address establishing deficiencies. The court finds nothing improper in the defenses, thereby warranting a heightened pleading standard.

Even if Plaintiffs established such support, the court finds the case law governing demurrer supports allowing further discovery and otherwise protecting a defendant's right to preserve defenses, rather than risk waiver. The thirty sixth defense for Reservation of Additional Affirmative Defenses facilitates any potential, later sought after amendments following further discovery. The court declines to force further factual allegations at the risk of potentially waiving an affirmative defense based on further needed discovery at the beginning of litigation. Thus, barring a legal conflict established by the challenging party, the court adheres to the liberal policy of allowing affirmative defenses with the intent of the parties engaging in discovery for further clarification of any and all claims. The court therefore finds the argument challenging improper reliance on conclusions and the lack of ultimate facts insufficiently supported, and overrules the demurrer on this basis.

The demurrer is OVERRULED in its entirety. The parties may engage in discovery regarding support of the defenses. The case is at issue.